

DAVIS, ET AL. VS. GENERAL MOTORS LLC

CASE NUMBER: 25CV-0208830

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 9, 2026 to Plaintiffs' counsel and Defendant's Counsel for failing to appear at the Mandatory Settlement Conference on June 29, 2026. Defendant's counsel filed a written response that provides evidence that the matter settled the Friday prior to the Mandatory Settlement Conference, that Plaintiff's counsel electronically served a Notice of Settlement at 9:43 a.m. the date of the settlement, and that in an abundance of caution, staff from Defendant's counsel's office tried to reach the clerk by phone the morning of the settlement conference. In light of this, the Court will **DISCHARGE** the Order to Show Cause as to Defendant's counsel. The Court notes that a Notice of Settlement was not filed in this matter. Plaintiffs' counsel did not file a written response. With no sufficient excuse for failing to appear at the Mandatory Settlement Conference, monetary sanctions are imposed in the amount of \$250 against Plaintiffs' counsel California Consumer Attorneys, P.C. The clerk is directed to issue an Order of Sanctions. The Court notes that trial in this matter is calendared for September 1, 2026. Based on the evidence provided by Defendant's counsel, the trial date is vacated. The matter will be on calendar on **Monday, October 5, 2026 at 9:00 a.m. in Department 63** for status of Notice of Settlement and judgment/dismissal. **No appearance is necessary on today's calendar.**

HEARDEN, ET AL. VS. WINDSOR REDDING CARE CENTER, LLC, ET AL.

CASE NUMBER: CVPO21-0198083

Tentative Ruling on Motion for Summary Judgment/Adjudication: Six Defendants have filed a Motion for Summary Judgment or Adjudication that was joined by a seventh Defendant. The motion and joinder are opposed by Plaintiffs. The Court notes that the filings for this motion total more than 9,000 pages. The Court has worked diligently to review this matter. However, due to the volume of the filings, the Court has been unable to review the motion and supporting evidence in their entirety. The Court further notes that oral argument on this motion is likely to take longer than can be accommodated on the Law & Motion calendar. To allow time for the Court to fully review this matter and issue a tentative ruling, and also to provide the parties sufficient time for oral argument, the Court will specially set the hearing on the motion for **Friday, August 28, 2026 at 8:30 a.m. in Department 63**. Based upon the circumstances articulated above, the Court finds good cause to hear the motion within 30 days of trial pursuant to CCP § 437c(a)(3). No additional briefing is permitted. A tentative ruling will be posted no less than twelve hours prior to the hearing. **No appearance is necessary on today's calendar.**

JS MECHANICAL, INC. VS. LAFF, LLC, ET AL.

CASE NUMBER: 25CV-0207114

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Defendant and Defendant's counsel on June 23, 2026 for failure to appear in court on June 1, 2026. Defendant filed a written response that provides sufficient excuse for the non-appearance. The Order to Show Cause is **DISCHARGED**. The matter is on calendar today at 9:00 a.m. and an appearance will be necessary at 9:00 a.m.

MALINOVSKY VS. SHASTA UNION HIGH SCHOOL DISTRICT, ET AL.

CASE NUMBER: 26CV-0210144

Tentative Ruling on Demurrer and Motion to Strike: Respondents Shasta Union High School District ("SUHSD"), Jason Rubin, Heath Bunton, and Karen Fifield demur to the First Cause of Action for Writ of Mandate under CCP § 1085 contained within the Verified First Amended Petition for Writ of Peremptory Mandate (First Amended Petition) filed by Petitioner Joseph Malinovsky filed on April 10, 2026. Respondents also move to strike the First Amended Petition. Petitioner opposes the demurrer and motion to strike. The Court notes Petitioner's opposition to the demurrer exceeds 15 pages, in violation of CRC 3.1113(d). The Court, in its discretion, will consider the excess pages.

Meet and Confer. CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with

the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Matthew Mendoza indicates compliance with the meet and confer requirements.

Request for Judicial Notice. Respondents’ request to take judicial notice of the First Amended Petition for Peremptory Writ of Mandate filed on April 10, 2026, is granted pursuant to Evidence Code § 452(d).

Objections to Petitioner’s declaration in support.

- Objection to Page 2, lines 5-10: Sustained.
- Objection to Page 2, lines 11-21: Overruled. This information was provided in the First Amended Petition.
- Objection to Page 2, line 22 to Page 3: Overruled as to page 2, lines 22-25 and page 3 lines 5-11; this information was provided in the first amended Petition. Sustained as to page 2, line 26 to Page 3, line 4.
- Objection to Page 3, lines 13-18; Exhibit H: Sustained.
- Objection to Page 3, lines 10-25; Exhibit I: Sustained.

Objections to Petitioner’s compendium of evidence.

- Objections to Exhibit H and I: Sustained as improper extrinsic evidence.
- Objections to Exhibit L, M, N, O, P, Q, R, and S: Sustained as duplicative.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.

The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds:

- (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading.
- (b) The person who filed the pleading does not have the legal capacity to sue.
- (c) There is another action pending between the same parties on the same cause of action.
- (d) There is a defect or misjoinder of parties.
- (e) The pleading does not state facts sufficient to constitute a cause of action.
- (f) The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible.
- (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.
- (h) No certificate was filed as required by Section 411.35.

CCP § 430.10.

The Demurrer is brought on the grounds that the First Amended Petition fails to state facts sufficient to show that Respondents violated a ministerial duty, fails to state clear and certain allegations pursuant to CCP § 430.10, that Petitioner failed to exhaust his administrative remedies prior to filing his suit, and that Petitioner lacks standing and/or there is a misjoinder of parties. The First Amended Petition seeks a writ of mandate pursuant to CCP § 1085.

Standing and/or misjoinder of parties. Respondents argue that Petitioner is seeking to challenge a complaint made by his child and that therefore Petitioner does not have standing to sue on behalf of his child without legal representation and, to the extent Petitioner asserts the claims as his own, they demurrer based on misjoinder of parties. While the complaint is about alleged conduct directed towards his child, the complaint which initiated the investigation at issue was made by Petitioner. Respondents acknowledge that Petitioner had the right to file the complaint. It thus follows that Petitioner has the right for that complaint to be handled in compliance with SUHSD’s policies and procedures. The demurrer is **OVERRULED** on the grounds that Petitioner lacks standing

or there is a misjoinder of parties.

Violation of a ministerial duty. Respondents argue that the First Amended Petition fails to state facts sufficient to show Respondents failed to comply with the mandated reporting requirements of Penal Code § 11166. “[A] mandated reporter shall make a report to an agency... whenever the mandated reporter, in the mandated reporter’s professional capacity or within the scope of the mandated reporter’s employment, has knowledge of or observes a child whom the mandated reporter knows or reasonably suspects has been the victim of child abuse or neglect.” Penal Code § 11166(a).

Respondents further argue that the First Amended Petition fails to state facts sufficient to show Respondents failed to comply with the mandated reporting requirements of Board Policy 1312.1. “While mandate lies to compel a public agency to comply with a ministerial duty, it usually does not lie to compel a public agency to exercise its discretion in a particular manner.” *Citizens for Amending Proposition L v. City of Pomona* (2018) 28 Cal.App.5th 1159. “A public entity has a ministerial duty to comply with its own rules and regulations where they are valid and unambiguous.” *Gregory v. State Bd. of Control* (1999) 73 Cal.App.4th 584.

Board Policy 1312.1 provides that any complaint of child abuse or neglect alleged against a district employee “shall be” reported to the local agencies in accordance with law and Board Policy 5141.1. The Board Policy created a ministerial duty to report “any complaint of child abuse or neglect.”

Petitioner argues that Respondents violated their ministerial duty by failing to report the complained of physical contact between the teacher and his minor son to the appropriate authorities as child abuse. However, as Respondents point out in their briefing, the policy and law only require reporting of abuse based on “reasonable suspicion.” This vests Respondents with significant discretion in their reporting requirements. Through the writ process, the court cannot “compel the exercise of that discretion in a particular manner or to reach a particular result.” (*Daily Journal Corp. v. County of Los Angeles* (2009) 172 Cal.App.4th 1550, 1555.)

Here, the First Amended Petition makes it clear that Respondents conducted an investigation. The fact that they conducted that investigation in a manner that Petitioner does not approve of does not create a violation of their ministerial duty.

The demurrer is **SUSTAINED** on the grounds that the First Amended Petition fails to state facts sufficient that Respondents violated a ministerial duty.

Exhaustion of administrative remedies. Respondents argue that Petitioner has failed to state facts to show he has exhausted all administrative remedies available. Specifically, they allege that Petitioner failed to challenge the investigation’s findings and determination by appealing to the Board prior to filing suit pursuant to Board Policy 1312.1.

“The writ must be issued in all cases where there is not a plain, speedy, and adequate remedy, in the ordinary course of law.” CCP § 1086. “[T]he exhaustion of administrative remedies, including ““internal grievance procedures”” provided by a public entity, is a jurisdictional prerequisite to filing an action in court.” *Romero v. County of Kern* (2025) 116 Cal.App.5th 1189. “This is so even though the administrative remedy is couched in permissive language; an aggrieved party is not required to file a grievance or protest if he does not wish to do so, but if he does wish to seek relief, he must first pursue an available administrative remedy before he may resort to the judicial process.” *Yamaha Motor Corp. v. Superior Court* (1986) 185 Cal.App.3d 1232.

Board Policy 1312.1 provides that, “[i]f either the complainant or the employee submits an appeal of the Superintendent’s decision to the Board, the Board shall determine whether to uphold the Superintendent’s decision without hearing the complaint, appoint an appeals committee to advise the Board, or hear the appeal

itself.”

While the appeal of a complaint is permissive, it is clear Petitioner is first required to pursue an appeal to the Board. The First Amended Petition fails to allege facts that this prerequisite has been satisfied.

Petitioner argues that an appeal to the Board is precluded by the futility doctrine. Exceptions to exhaustion of administrative remedies occurs “when the administrative remedy is unavailable, when it is inadequate, or when it would be futile to pursue it.” *SJCBC LLC v. Horwedel* (2011) 201 Cal.App.4th 339. “The futility exception to the requirement of exhaustion of administrative remedies is a very narrow one.” *County of Contra Costa v. State of California* (1986) 177 Cal.App.3d 62. “The futility exception requires that the party invoking the exception can positively state that the [agency] has declared what its ruling will be on a particular case.” *Jonathan Neil & Assoc., Inc. v. Jones* (2004) 33 Cal.4th 917. The First Amended Petition and Opposition fail to positively state that the Board has declared what its ruling would be on this particular case.

The demurrer is **SUSTAINED** on the grounds of Petitioner’s failure to exhaust administrative remedies. Leave to file an amended petition is denied considering Petitioner has not complied with appeal requirements of Board Policy 1312.1. Thus the filing of an amended Petition would be ineffective.

Failure to state clear and certain allegations. Respondents contend that the First Amended Petition is vague, conclusory, and that inconsistent allegations obscure the factual basis and conflates legal theories.

A traditional writ of mandate under CCP §1085 is available when the petitioner has no plain, speedy, and adequate remedy; the respondent has a clear, present, and usually ministerial duty to perform; and the petitioner has a clear, present, and beneficial right to performance. *Conlan v. Bonta* (2002) 102 Cal. App. 4th 745, 748; *Unnamed Physician v Board of Trustees* (2001) 93 Cal. App. 4th 607, 618. Two basic requirements are essential to the issuance of the writ: (1) a clear, present and usually ministerial duty upon the part of the respondent, and (2) a clear, present and beneficial right in the petitioner to the performance of that duty.

The First Amended Petition alleges Respondents have a duty under Penal Code § 11166 and Board Policy 1312.1 to report allegations involving physical contact and a ministerial duty to produce an objective investigation free from fraud. The First Amended Petition further alleges that Petitioner submitted a complaint and Respondents failed to discharge these duties in relation to that complaint. The demurrer is **OVERRULED** on the grounds that the First Amended Petition fails to state clear and certain allegations.

The Demurrer is **SUSTAINED** without leave to amend. Considering the demurrer is sustained without leave to amend and the Petition will therefore be dismissed, the motion to strike is **DENIED** as moot. Respondents provided proposed Orders that will be modified to reflect the Court’s ruling. The clerk is directed to close the file and vacate any future hearing dates upon processing of the order.

PHILLIPS, ET AL. VS. PRIME HEALTHCARE SERVICES, INC., ET AL.

CASE NUMBER: 25CV-0208680

Tentative Ruling on Demurrer (by Defendant County of Shasta): Defendant County of Shasta demurs to the Second Amended Complaint filed by Plaintiffs Fredrick James Phillips and Heather Lynn Phillips. Plaintiffs oppose the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Dominick Hurley provides evidence of sufficient meet and confer efforts.